

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

Index No.:

Date Purchased:

-----X
JEAN MAXO,

Plaintiff designates
Queens County as the
place of trial

Plaintiff,

-against-

The basis of venue is
location of occurrence

THE CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT, POLICE OFFICER DANIEL
CONFORTI (Tax ID# 940995), POLICE OFFICER GEORGE
BODENMILLER (Tax ID # 936223) and SERGEANT ROBERT
MERCER (Tax ID #916216), BELIEVED TO BE WITH THE
PBQS TASK FORCE OUT OF THE 105th PRECINCT,

SUMMONS

Plaintiff resides at
5 Lincoln Road
West Hempstead, NY 11552
County of Nassau

Defendants.

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To the above named Defendant(s):

YOU ARE HEREBY SUMMONED and required to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney within twenty (20) days after service of this summons, exclusive of the day of service (or within thirty (30) days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Lake Success, New York
August 5, 2013

Yours etc.,


LAW OFFICE OF HARLEY S. FASTMAN
By: Harley S. Fastman, Esq.
Attorney for Plaintiff
2001 Marcus Avenue, Suite 90S
Lake Success, New York 11042
(516) 437-7300

TO: THE CITY OF NEW YORK
100 Church Street, 4th Floor
New York, N.Y. 10007

NEW YORK CITY POLICE DEPARTMENT
1 Police Plaza
New York, New York 10007

POLICE OFFICER DANIEL CONFORTI (Tax ID # 940995)
c/o 105th Precinct
92-08 222nd Street
Queens Village, New York 11428

POLICE OFFICER GEORGE BODENMILLER (Tax ID # 936223)
c/o 105th Precinct
92-08 222nd Street
Queens Village, New York 11428

SERGEANT ROBERT MERCER (Tax ID # 916216)
c/o 105th Precinct
92-08 222nd Street
Queens Village, New York 11428

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

-----X
JEAN MAXO,

Plaintiff,

-against-

VERIFIED COMPLAINT

Index No.:

THE CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT, POLICE OFFICER DANIEL
CONFORTI (Tax ID# 940995), POLICE OFFICER GEORGE
BODENMILLER (Tax ID # 936223) and SERGEANT ROBERT
MERCER (Tax ID #916216), BELIEVED TO BE WITH THE
PBQS TASK FORCE OUT OF THE 105th PRECINCT,

Defendants.
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Plaintiff, by his attorney, LAW OFFICE OF HARLEY S. FASTMAN, as and for his

Verified Complaint, hereby alleges, upon information and belief, as follows:

**AS AND FOR A FIRST CAUSE OF ACTION ON
BEHALF OF PLAINTIFF FOR FALSE ARREST**

1. The damages sought herein exclusive of interest, costs and disbursements, exceed the jurisdictional limits of all other Courts lower than the Supreme Court, which otherwise would have jurisdiction.
2. This action falls into one or more exceptions set forth in CPLR §1602.
3. At all times relevant herein, plaintiff, JEAN MAXO was and is a natural person and citizen of the United States, domiciliary in the County of Nassau and State of New York.
4. At all times hereinafter mentioned defendant, THE CITY OF NEW YORK was and still is a municipal corporation, duly organized and existing under and by virtue of the laws of the State of New York.
5. Prior hereto and on June 11, 2012, and within the time prescribed by law, a sworn Notice of Claim stating, among other things, the time when and place where the injuries and damages were sustained, together with Plaintiff's demand for adjustment thereof,

was duly served on the claimant's behalf on the Comptroller for the City of New York and that thereafter said Comptroller for the City of New York failed, refused and/or neglected for more than thirty (30) days, and up to the commencement of this action, to make any adjustment or payment thereof, and that thereafter, and within the time provided by law, this action was commenced.

6. Defendant, CITY OF NEW YORK, pursuant to General Municipal Law & 50-h, required plaintiff to appear and submit to oral examination under oath with respect to the underlying claim and Plaintiff, JEAN MAXO, did so appear and submit to such examination on August 7, 2012.
7. On August 7, 2012, Defendant, CITY OF NEW YORK, conducted an oral hearing of Plaintiff, JEAN MAXO, pursuant to General Municipal Law & 50-h, regarding the facts and circumstances of the incident complained of herein, for which Plaintiff appeared and testified.
8. This action is being commenced within the time allowed by law for institution of the action.
9. Upon information and belief, Defendant, CITY OF NEW YORK, operated a police force known as the NEW YORK CITY POLICE DEPARTMENT, all of whose police officers, including defendants, POLICE OFFICER DANIEL CONFORTI, Tax ID# 940995, POLICE OFFICER GEORGE BODENMILLER, Tax ID # 936223 and SERGEANT ROBERT MERCER, Tax ID #916216, were employed by Defendant CITY OF NEW YORK.
10. Upon information and belief, Defendant, a police force known as the NEW YORK CITY POLICE DEPARTMENT was an agency, department, and/or subsidiary of Defendant, CITY OF NEW YORK.

11. Upon information and belief and at all times herein mentioned, Defendant, CITY OF NEW YORK, operated a police department within the City of New York, namely Defendant NEW YORK CITY POLICE DEPARTMENT, which includes the “105th Precinct,” which is located at 92-08 222nd Street, Queens Village, NY 11428.
12. Upon information and belief and at all times herein mentioned, Defendant CITY OF NEW YORK, employed as Police Officers, Detectives, undercover plain clothes officers, and/or impact response agents who worked for Defendant, NEW YORK CITY POLICE DEPARTMENT, an agency, department and/or subsidiary of Defendant, CITY OF NEW YORK, including defendants, POLICE OFFICER DANIEL CONFORTI, Tax ID# 940995, POLICE OFFICER GEORGE BODENMILLER, Tax ID # 936223 and SERGEANT ROBERT MERCER, Tax ID #916216.
13. Upon information and belief and at all times herein mentioned, Police Officers, Detectives, undercover plain clothes officers, and/or impact response agents working in the 105th Precinct were employed by Defendant, CITY OF NEW YORK, including defendants, POLICE OFFICER DANIEL CONFORTI, Tax ID# 940995, POLICE OFFICER GEORGE BODENMILLER, Tax ID # 936223 and SERGEANT ROBERT MERCER, Tax ID #916216.
14. Upon information and belief and at all times herein mentioned, the Police Officers, Detectives, undercover plain clothes officers, impact response agents, and/or other agents and/or employees of Defendant, NEW YORK CITY POLICE DEPARTMENT, including defendants, POLICE OFFICER DANIEL CONFORTI, Tax ID# 940995, POLICE OFFICER GEORGE BODENMILLER, Tax ID # 936223 and SERGEANT ROBERT MERCER, Tax ID #916216, underwent a training program

in order to become so employed in their respective capacities by Defendant, CITY OF NEW YORK.

15. Upon information and belief at all times herein mentioned, Defendant, CITY OF NEW YORK, required all police officers, detectives, undercover plain clothes officers, other agents and/or employees, including defendants, POLICE OFFICER DANIEL CONFORTI, Tax ID# 940995, POLICE OFFICER GEORGE BODENMILLER, Tax ID # 936223 and SERGEANT ROBERT MERCER, Tax ID #916216, who worked for Defendant NEW YORK CITY POLICE DEPARTMENT, an agency, department and/or subsidiary of Defendant CITY OF NEW YORK, to pass a training program at the 'Police Academy.'"
16. Upon information and belief, at all times herein mentioned, Defendant NEW YORK CITY POLICE DEPARTMENT, an agency, department, and/or subsidiary of Defendant, CITY OF NEW YORK, as part of its program for new Police Officers, detectives, undercover plain clothes officers and other agents, including defendants, POLICE OFFICER DANIEL CONFORTI, Tax ID# 940995, POLICE OFFICER GEORGE BODENMILLER, Tax ID # 936223 and SERGEANT ROBERT MERCER, Tax ID #916216, trained those individuals in the proper procedures by which to approach, question, search, and if necessary, detain an individual suspected of a crime.
17. Upon information and belief, at all times herein mentioned, Defendant NEW YORK CITY POLICE DEPARTMENT, an agency, department, and/or subsidiary of Defendant, CITY OF NEW YORK, as part of its program for new Police Officers, detectives, undercover plain clothes officers and other agents, including defendants, POLICE OFFICER DANIEL CONFORTI, Tax ID# 940995, POLICE OFFICER

GEORGE BODENMILLER, Tax ID # 936223 and SERGEANT ROBERT MERCER, Tax ID #916216, trained those individuals in the proper procedures by which to approach, question, search, and if necessary, detain and even arrest, based upon reasonable probable cause an individual suspected of a crime.

18. On or about May 16, 2012, at approximately 10:00 p.m., Plaintiff, JEAN MAXO, was lawfully driving his motor vehicle on 225th Street at or near the intersection with Hempstead Avenue, County of Queens and State of New York.
19. On or about May 16, 2012, at approximately 10:00 p.m., while Plaintiff, JEAN MAXO, was lawfully driving his motor vehicle on 225th Street at or near the intersection with Hempstead Avenue, County of Queens and State of New York, he was unlawfully, falsely, wrongfully, intentionally and illegally pulled over in his car by police officers of Defendant, NEW YORK CITY POLICE DEPARTMENT, including defendants, POLICE OFFICER DANIEL CONFORTI, Tax ID# 940995, POLICE OFFICER GEORGE BODENMILLER, Tax ID # 936223 and SERGEANT ROBERT MERCER, Tax ID #916216, and without just cause, illegally detained, handcuffed, battered and subsequently arrested with excessive force.
20. On or about May 16, 2012, at approximately 10:00 p.m. at the aforesaid location, while Plaintiff, JEAN MAXO, was handcuffed, his head was banged against his motor vehicle by police officers of Defendant NEW YORK CITY POLICE DEPARTMENT, including defendants, POLICE OFFICER DANIEL CONFORTI, Tax ID# 940995, POLICE OFFICER GEORGE BODENMILLER, Tax ID # 936223 and SERGEANT ROBERT MERCER, Tax ID #916216.
21. On or about May 16, 2012, at approximately 10:00 p.m. at the aforesaid location, while Plaintiff, JEAN MAXO, was being held by police officers of Defendant NEW YORK

CITY POLICE DEPARTMENT, including defendants, POLICE OFFICER DANIEL CONFORTI, Tax ID# 940995, POLICE OFFICER GEORGE BODENMILLER, Tax ID # 936223 and SERGEANT ROBERT MERCER, Tax ID #916216, regarding his arrest, Plaintiff was searched of his person and property, which revealed no evidence of any crime.

22. On or about May 16, 2012, at approximately 10:00 p.m. at the aforesaid location, despite Plaintiff immediately professing his innocence, consenting to a search of his person and property, and otherwise cooperating with all inquiries and directives of the officers of Defendant NEW YORK CITY POLICE DEPARTMENT, including defendants, POLICE OFFICER DANIEL CONFORTI, Tax ID# 940995, POLICE OFFICER GEORGE BODENMILLER, Tax ID # 936223 and SERGEANT ROBERT MERCER, Tax ID #916216, who never explained their reasoning, police officers, detectives, impact response team members, undercover plain clothes officers and/or employees of Defendants, NEW YORK CITY POLICE DEPARTMENT and/or CITY OF NEW YORK, including defendants, POLICE OFFICER DANIEL CONFORTI, Tax ID# 940995, POLICE OFFICER GEORGE BODENMILLER, Tax ID # 936223 and SERGEANT ROBERT MERCER, Tax ID #916216, nonetheless detained, struck, handcuffed, and arrested the Plaintiff.
23. On or about May 16, 2012, at approximately 10:00 p.m. at the aforesaid location, Police Officer(s), Detectives, undercover plain clothes police and/or other agents of Defendant, NEW YORK CITY POLICE DEPARTMENT, including defendants, POLICE OFFICER DANIEL CONFORTI, Tax ID# 940995, POLICE OFFICER GEORGE BODENMILLER, Tax ID # 936223 and SERGEANT ROBERT MERCER, Tax ID #916216, physically encountered, forcibly and violently contacted

Plaintiff's, JEAN MAXO, person against his will without just cause or reason.

24. On or about May 16, 2012, at approximately 10:00 p.m. at the aforesaid location, while Police Officer(s), Detectives, and/or other agents and/or employees of Defendant, NEW YORK CITY POLICE DEPARTMENT, including defendants, POLICE OFFICER DANIEL CONFORTI, Tax ID# 940995, POLICE OFFICER GEORGE BODENMILLER, Tax ID # 936223 and SERGEANT ROBERT MERCER, Tax ID #916216, physically encountered, forcibly and violently contacted Plaintiff's, JEAN MAXO, person against his will without just cause or reason, and/or otherwise engaged him in a forceful and violent manner, said individuals were acting in the scope of their employment for Defendants NEW YORK CITY POLICE DEPARTMENT and/or CITY OF NEW YORK.
25. On or about May 16, 2012, at approximately 10:00 p.m., police officers, detectives, and/or other agents and/or employees of Defendant(s), NEW YORK CITY POLICE DEPARTMENT and/or CITY OF NEW YORK, including defendants, POLICE OFFICER DANIEL CONFORTI, Tax ID# 940995, POLICE OFFICER GEORGE BODENMILLER, Tax ID # 936223 and SERGEANT ROBERT MERCER, Tax ID #916216, accused and arrested plaintiff, JEAN MAXO, of having committed a criminal act(s).
26. At all times mentioned herein, the individual(s) who partook in detaining and arresting Plaintiff, JEAN MAXO, including defendants, POLICE OFFICER DANIEL CONFORTI, Tax ID# 940995, POLICE OFFICER GEORGE BODENMILLER, Tax ID # 936223 and SERGEANT ROBERT MERCER, Tax ID #916216, were police officers, detectives, undercover plain clothes officers, agents and/or employees of Defendant(s), NEW YORK CITY POLICE DEPARTMENT and/or CITY OF NEW

YORK.

27. At all times mentioned herein, the police officers, detectives, impact response team members, undercover plain clothes officers and/or other individuals who arrested plaintiff, JEAN MAXO, including defendants, POLICE OFFICER DANIEL CONFORTI, Tax ID# 940995, POLICE OFFICER GEORGE BODENMILLER, Tax ID # 936223 and SERGEANT ROBERT MERCER, Tax ID #916216, were acting within the scope of their employment with Defendant(s), NEW YORK CITY POLICE DEPARTMENT and/or CITY OF NEW YORK.
28. Upon information and belief, on or about May 16, 2012, Plaintiff, JEAN MAXO, was initially detained at a precinct of Defendant, NEW YORK CITY POLICE DEPARTMENT, where he remained in custody for several hours.
29. Upon information and belief, on or about May 16, 2012, Plaintiff, JEAN MAXO, was detained initially at the 105th Precinct of Defendant, NEW YORK CITY POLICE DEPARTMENT, located at 92-08 222nd Street, Queens Village, NY 11428, where he remained in custody for several hours until he was transferred to the New York City Police Booking where he remained for a total of approximately twenty-four (24) hours.
30. Upon information and belief, on or about May 17, 2012, Plaintiff, JEAN MAXO, was detained at New York City Police Booking office of Defendant, NEW YORK CITY POLICE DEPARTMENT, where he remained in custody until approximately 7:00 p.m.– 8:00 p.m. that evening.
31. Upon information and belief, on or about May 17, 2012, Plaintiff, JEAN MAXO, was detained at New York City Police Booking office of Defendant, NEW YORK CITY POLICE DEPARTMENT, where he remained in custody until approximately 7:00 p.m.– 8:00 p.m. that evening, despite the Prosecutor admitting there was no cause for

arrest.

32. On or about July 18, 2012, Plaintiff, JEAN MAXO appeared before a Justice of the Criminal Court of the City of New York, County of Queens, with respect to his arrest and purported charge(s).
33. On or about July 18, 2012, while Plaintiff, JEAN MAXO, appeared at Criminal Court of the City of New York, County of Queens, 125-01 Queens Blvd Kew Garden, New York 11415, all criminal charge(s) against Plaintiff, JEAN MAXO were dismissed however, he was ordered to pay a fine of \$120.00.
34. On or about July 18, 2012 all criminal charges against Plaintiff, JEAN MAXO, were dismissed.
35. On or about July 18, 2012 all criminal charges against Plaintiff, JEAN MAXO, were dismissed by the Court as there was no basis for same.
36. Under the circumstances herein, the Defendant(s), NEW YORK CITY POLICE DEPARTMENT and/or CITY OF NEW YORK, including defendants, POLICE OFFICER DANIEL CONFORTI, Tax ID# 940995, POLICE OFFICER GEORGE BODENMILLER, Tax ID # 936223 and SERGEANT ROBERT MERCER, Tax ID #916216, falsely arrested Plaintiff, JEAN MAXO, denying him of his civil and constitutional rights and liberty.
37. Under the circumstances as set forth hereinabove, Plaintiff, JEAN MAXO, was falsely arrested after excessive force was utilized causing physical and psychological injuries.
38. All of the foregoing have resulted in Plaintiff sustaining physical and psychological injuries, emotional manifestations and overlay, pain and suffering of both body and mind, stress, anxiety, humiliation, embarrassment, tension, and all other damages permitted by law.

39. As a result of the foregoing, Plaintiff, JEAN MAXO has been damaged by Defendants, CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, POLICE OFFICER DANIEL CONFORTI, Tax ID# 940995, POLICE OFFICER GEORGE BODENMILLER, Tax ID # 936223 and SERGEANT ROBERT MERCER, Tax ID #916216, in conformity with Section 3017 of the CPLR, in an amount that exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

**AS AND FOR A SECOND CAUSE OF ACTION
ON BEHALF OF PLAINTIFF FOR FALSE AND UNJUST DETENTION**

40. Plaintiff repeats, reiterates, and realleges each and every allegation of this complaint as set forth hereinabove with the same force and effect as though more fully set forth at length herein.

41. As a result of the foregoing, Plaintiff JEAN MAXO was held and detained by police officer(s), detective(s), impact response team member(s), undercover plain clothes officer(s), agent(s) and/or employee(s) of Defendant NEW YORK CITY POLICE DEPARTMENT and/or CITY OF NEW YORK, including defendants, POLICE OFFICER DANIEL CONFORTI, Tax ID# 940995, POLICE OFFICER GEORGE BODENMILLER, Tax ID # 936223 and SERGEANT ROBERT MERCER, Tax ID #916216, against his will and without just or any cause.

42. The foregoing constitutes false and unjust detention plaintiff, JEAN MAXO against his will, thereby causing him damages including psychological injuries.

43. As a result of the foregoing, plaintiff, JEAN MAXO has been damaged by defendants, CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, POLICE OFFICER DANIEL CONFORTI, Tax ID# 940995, POLICE OFFICER GEORGE BODENMILLER, Tax ID # 936223 and SERGEANT ROBERT MERCER, Tax ID #916216, in conformity with Section 3017 of the CPLR, in an amount that exceeds the

jurisdictional limits of all lower courts which would otherwise have jurisdiction.

**AS AND FOR A THIRD CAUSE OF ACTION
ON BEHALF OF PLAINTIFF FOR MALICIOUS PROSECUTION**

44. Plaintiff repeats, reiterates, and realleges each and every allegation of this complaint as set forth hereinabove with the same force and effect as though more fully set forth at length herein.
45. At all times herein mentioned and particularly on May 16, 2012 at approximately 10:00 p.m., Plaintiff, JEAN MAXO, was arrested by police officer(s), detective(s), impact response team member(s), undercover plain clothes officer(s), agent(s) and/or employee(s) of Defendant NEW YORK CITY POLICE DEPARTMENT and/or CITY OF NEW YORK, including defendants, POLICE OFFICER DANIEL CONFORTI, Tax ID# 940995, POLICE OFFICER GEORGE BODENMILLER, Tax ID # 936223 and SERGEANT ROBERT MERCER, Tax ID #916216, without just cause or provocation.
46. As a result of the foregoing, police officer(s), detective(s), impact response team member(s), undercover plain clothes officer(s), agent(s) and/or employee(s) of Defendant NEW YORK CITY POLICE DEPARTMENT and/or CITY OF NEW YORK, including defendants, POLICE OFFICER DANIEL CONFORTI, Tax ID# 940995, POLICE OFFICER GEORGE BODENMILLER, Tax ID # 936223 and SERGEANT ROBERT MERCER, Tax ID #916216, as well as prosecutors employed by Defendant CITY OF NEW YORK, instituted and maintained charges against plaintiff, JEAN MAXO, when defendants knew that said charges were baseless, without merit or justification.
47. The charges instituted against Plaintiff, JEAN MAXO, were dismissed by the court.
48. The defendants herein, instituted and/or encouraged criminal prosecution of Plaintiff,

JEAN MAXO.

49. The criminal proceeding against Plaintiff JEAN MAXO terminated in favor of Plaintiff JEAN MAXO when said charge(s) were dismissed on July 18, 2012 by the Criminal Court, County of Queens, City and State of New York, however plaintiff was forced to pay a fine in the amount of \$120.00.
50. Upon information and belief the Defendants herein, CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, POLICE OFFICER DANIEL CONFORTI, Tax ID# 940995, POLICE OFFICER GEORGE BODENMILLER, Tax ID # 936223 and SERGEANT ROBERT MERCER, Tax ID #916216, had no probable cause to arrest Plaintiff and institute the aforementioned proceedings, thereby obligating the Court with no alternative except to dismiss the charges.
51. Upon there being no basis for any of the criminal charges having been instituted in the first instance against Plaintiff, JEAN MAXO, Defendants' actions in bringing criminal charges and seeking to prosecute Plaintiff constitute malicious prosecution, thereby causing Plaintiff to incur damages including psychological injuries.
52. As a result of the foregoing, Plaintiff, JEAN MAXO has been damaged by Defendants, CITY OF NEW YOURK, NEW YORK CITY POLICE DEPARTMENT, POLICE OFFICER DANIEL CONFORTI, Tax ID# 940995, POLICE OFFICER GEORGE BODENMILLER, Tax ID # 936223 and SERGEANT ROBERT MERCER, Tax ID #916216, in conformity with Section 3017 of the CPLR, in an amount that exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

**AS AND FOR A FOURTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF FOR FALSE IMPRISONMENT**

53. Plaintiff repeats, reiterates, and realleges each and every allegation of this complaint set forth hereinabove with the same force and effect as though more fully set forth at length

herein.

54. As a result of the foregoing, Plaintiff JEAN MAXO was held, detained and incarcerated by police officers, detectives, impact response team members, undercover plain clothes officers, agents and/or employees of Defendant NEW YORK CITY POLICE DEPARTMENT and/or CITY OF NEW YORK, including defendants, POLICE OFFICER DANIEL CONFORTI, Tax ID# 940995, POLICE OFFICER GEORGE BODENMILLER, Tax ID # 936223 and SERGEANT ROBERT MERCER, Tax ID #916216, against his will and without just or any cause from the time of his arrest on May 16, 2012 at 10:00 p.m. until approximately 7:00 p.m.– 8:00 p.m. on May 17, 2012.
55. Police officers, detectives, impact response team members, agents and/or employees of Defendant NEW YORK CITY POLICE DEPARTMENT and/or CITY OF NEW YORK, including defendants, POLICE OFFICER DANIEL CONFORTI, Tax ID# 940995, POLICE OFFICER GEORGE BODENMILLER, Tax ID # 936223 and SERGEANT ROBERT MERCER, Tax ID #916216, intentionally confined Plaintiff, JEAN MAXO.
56. Police officers, detectives, impact response team members, agents and/or employees of Defendant NEW YORK CITY POLICE DEPARTMENT and/or CITY OF NEW YORK, including defendants, POLICE OFFICER DANIEL CONFORTI, Tax ID# 940995, POLICE OFFICER GEORGE BODENMILLER, Tax ID # 936223 and SERGEANT ROBERT MERCER, Tax ID #916216, intentionally confined Plaintiff, JEAN MAXO within definite physical boundaries of a jail cell, criminal courthouse holding cell, and/or other place of incarceration despite there being no justification in fact or law for same.
57. Police officers, detectives, impact response team members, agents and/or employees of

Defendant NEW YORK CITY POLICE DEPARTMENT and/or CITY OF NEW YORK, including defendants, POLICE OFFICER DANIEL CONFORTI, Tax ID# 940995, POLICE OFFICER GEORGE BODENMILLER, Tax ID # 936223 and SERGEANT ROBERT MERCER, Tax ID #916216, as well as prosecutors employed by Defendant CITY OF NEW YORK, intentionally confined Plaintiff, JEAN MAXO, who was aware of such confinement, within the definite physical boundaries of a jail cell, criminal courthouse holding cell, and/or other place of incarceration despite there being no justification in fact or law for same.

58. Police officers, detectives, impact response team members, agents and/or employees of Defendant NEW YORK CITY POLICE DEPARTMENT and/or CITY OF NEW YORK, including defendants, POLICE OFFICER DANIEL CONFORTI, Tax ID# 940995, POLICE OFFICER GEORGE BODENMILLER, Tax ID # 936223 and SERGEANT ROBERT MERCER, Tax ID #916216, intentionally confined Plaintiff, JEAN MAXO, who was aware of such confinement, within the definite physical boundaries of a jail cell, criminal courthouse holding cell, and/or other place of incarceration, with no reasonable means for said Plaintiff to extricate himself from this unlawful detention and imprisonment.

59. As a result of the foregoing, Plaintiff, JEAN MAXO, was falsely imprisoned by the defendants herein, against his will and without just or any cause thereby causing him to sustain damages including but not limited to psychological injuries.

60. As a result of the foregoing, Plaintiff, JEAN MAXO, has been damaged by Defendants, CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, POLICE OFFICER DANIEL CONFORTI, Tax ID# 940995, POLICE OFFICER GEORGE BODENMILLER, Tax ID # 936223 and SERGEANT ROBERT MERCER, Tax ID

#916216, in conformity with Section 3017 of the CPLR, in an amount that exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

**AS AND FOR A FIFTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF FOR FALSE IMPRISONMENT**

61. Plaintiff repeats, reiterates, and realleges each and every allegation of this complaint set forth hereinabove with the same force and effect as though more fully set forth at length herein.

62. The aforesaid events took place as a result of the carelessness, recklessness and

negligence of the Defendants herein, CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT, their agents, employees, and all others acting on their behalf, including defendants, POLICE OFFICER DANIEL CONFORTI, Tax ID# 940995,

POLICE OFFICER GEORGE BODENMILLER, Tax ID # 936223 and SERGEANT ROBERT MERCER, Tax ID #916216, in the following manner but not limited thereto:

in failing to avoid the happening of the incident involved herein; in failing to properly train and supervise its police officer(s), detective(s), undercover plain clothes officer(s), prosecutor(s), and other agent(s) and/or employee(s); in failing to comply with all

applicable statutes, ordinances, rules and regulations and particularly departmental rules and regulations of the NEW YORK CITY POLICE DEPARTMENT and said

Defendants were otherwise careless, reckless and negligent under the circumstances, all of which were a direct and proximate cause of the incident involved herein and injuries sustained therefrom.

63. As a result of the foregoing, Plaintiff JEAN MAXO, was caused to sustain personal injuries of both body and mind as well as special damages, all of which will be set forth in the bill of particulars to be served herein.

64. As a result of the foregoing, Plaintiff JEAN MAXO has been damaged by Defendants,

CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, POLICE OFFICER DANIEL CONFORTI, Tax ID# 940995, POLICE OFFICER GEORGE BODENMILLER, Tax ID # 936223 and SERGEANT ROBERT MERCER, Tax ID #916216, in conformity with Section 3017 of the CPLR, in an amount that exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

**AS AND FOR A SIXTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF FOR
INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS**

65. Plaintiff repeats, reiterates, and realleges each and every allegation of this complaint set forth hereinabove with the same force and effect as though more fully set forth at length herein.
66. As a result of the aforementioned incidents intentionally caused by police officers, detectives, impact response team members, undercover plain clothes officers, agents and/or employees of Defendant NEW YORK CITY POLICE DEPARTMENT and/or CITY OF NEW YORK, including defendants, POLICE OFFICER DANIEL CONFORTI, Tax ID# 940995, POLICE OFFICER GEORGE BODENMILLER, Tax ID # 936223 and SERGEANT ROBERT MERCER, Tax ID #916216, as well as prosecutors employed by Defendant CITY OF NEW YORK, Plaintiff, JEAN MAXO suffered severe emotional and/or mental distress.
67. As a result of the aforementioned extreme and outrageous conduct intentionally inflicted by police officers, detectives, undercover plain clothes officers, agents and/or employees of Defendants NEW YORK CITY POLICE DEPARTMENT and/or CITY OF NEW YORK, including defendants, POLICE OFFICER DANIEL CONFORTI, Tax ID# 940995, POLICE OFFICER GEORGE BODENMILLER, Tax ID # 936223 and SERGEANT ROBERT MERCER, Tax ID #916216, as well as prosecutors employed

by Defendant CITY OF NEW YORK, Plaintiff, JEAN MAXO suffered severe emotional and/or mental distress, including but not limited to emotional overlay, depression, stress, anxiety, humiliation, embarrassment and tension.

68. As a result of the foregoing intentional, extreme and outrageous acts of the Defendants, Plaintiff JEAN MAXO suffered severe emotional and/or mental distress, causing great psychological and emotional pain and suffering, all of which are permanent in nature.
69. As a result of the foregoing, Plaintiff JEAN MAXO has been damaged by Defendants NEW YORK CITY POLICE DEPARTMENT, CITY OF NEW YORK, POLICE OFFICER DANIEL CONFORTI, Tax ID# 940995, POLICE OFFICER GEORGE BODENMILLER, Tax ID # 936223 and SERGEANT ROBERT MERCER, Tax ID #916216, in conformity with Section 3017 of the CPLR, in an amount that exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

**AS AND FOR A SEVENTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF FOR
NEGLIGENT INFLICTION OF EMOTIONAL DISTRESS**

70. Plaintiff repeats, reiterates, and realleges each and every allegation of this complaint set forth hereinabove with the same force and effect as though more fully set forth at length herein.
71. As a result of the aforementioned incidents negligently caused by police officers, detectives, impact response team members, agents and/or employees of Defendant NEW YORK CITY POLICE DEPARTMENT and/or CITY OF NEW YORK, including defendants, POLICE OFFICER DANIEL CONFORTI, Tax ID# 940995, POLICE OFFICER GEORGE BODENMILLER, Tax ID # 936223 and SERGEANT ROBERT MERCER, Tax ID #916216, as well as prosecutors employed by Defendant CITY OF NEW YORK, Plaintiff, JEAN MAXO suffered severe emotional and/or

mental distress.

72. As a result of the aforementioned extreme and outrageous conduct negligently inflicted by police officers, detectives, agents and/or employees of Defendants NEW YORK CITY POLICE DEPARTMENT and/or CITY OF NEW YORK, including defendants, POLICE OFFICER DANIEL CONFORTI, Tax ID# 940995, POLICE OFFICER GEORGE BODENMILLER, Tax ID # 936223 and SERGEANT ROBERT MERCER, Tax ID #916216, as well as prosecutors employed by Defendant CITY OF NEW YORK, Plaintiff, JEAN MAXO suffered severe emotional and/or mental distress, including but not limited to emotional overlay, depression, stress, anxiety, humiliation, embarrassment and tension.

73. As a result of the foregoing intentional, extreme and outrageous acts of the Defendants, Plaintiff JEAN MAXO suffered severe emotional and/or mental distress, causing great psychological and emotional pain and suffering, all of which are permanent in nature.

74. As a result of the foregoing, Plaintiff JEAN MAXO has been damaged by Defendants NEW YORK CITY POLICE DEPARTMENT, CITY OF NEW YORK, POLICE OFFICER DANIEL CONFORTI, Tax ID# 940995, POLICE OFFICER GEORGE BODENMILLER, Tax ID # 936223 and SERGEANT ROBERT MERCER, Tax ID #916216, in conformity with Section 3017 of the CPLR, in an amount that exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

**AS AND FOR AN EIGHTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF FOR EXCESSIVE FORCE**

75. Plaintiff repeats, reiterates, and realleges each and every allegation of this complaint set forth hereinabove with the same force and effect as though more fully set forth at length herein.

76. The level of force employed by defendants, including defendants, POLICE OFFICER

DANIEL CONFORTI, Tax ID# 940995, POLICE OFFICER GEORGE BODENMILLER, Tax ID # 936223 and SERGEANT ROBERT MERCER, Tax ID #916216, was objectively unreasonable, excessive and in violation of plaintiff's constitutional rights.

77. As a result of the foregoing, plaintiff was severely injured and damaged, rendered sick, sore, lame and disabled, sustained severe nervous shock and mental anguish, great physical pain and emotional upset, some of which injuries are permanent in nature and duration; plaintiff, will be permanently caused to suffer pain, inconvenience and other adverse effects of such injuries; plaintiff, incurred and in the future will necessarily incur further hospital and/or medical expenses in an effort to be cured of said injuries; plaintiff has suffered and in the future will necessarily suffer additional loss of time and earnings from employment; and plaintiff will be unable to pursue his usual duties and recreational and social activities with the same degree of efficiency and pleasure as prior to this incident.
78. As a result of the foregoing, plaintiff has sustained injuries and damages in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

**AS AND FOR AN NINTH CAUSE OF ACTION
ON BEHALE OF PLAINTIFF FOR EXCESSIVE FORCE**

79. At all times herein after mentioned, defendants, POLICE OFFICER DANIEL CONFORTI, Tax ID# 940995, POLICE OFFICER GEORGE BODENMILLER, Tax ID # 936223 and SERGEANT ROBERT MERCER, Tax ID #916216, were trained, educated, skilled and experienced to refrain from violating plaintiff's civil rights, including, but not limited to, physically abusing plaintiff.
80. At all times hereinafter mentioned, defendants, POLICE OFFICER DANIEL

CONFORTI, Tax ID# 940995, POLICE OFFICER GEORGE BODENMILLER, Tax ID # 936223 and SERGEANT ROBERT MERCER, Tax ID #916216, had a duty to refrain from violating plaintiff's civil rights under the First, Fourth, Fifth, Eighth and Fourteenth Amendments of the Constitution, including, but not limited to physically abusing plaintiff.

81. At all times hereinafter mentioned, defendants, POLICE OFFICER DANIEL CONFORTI, Tax ID# 940995, POLICE OFFICER GEORGE BODENMILLER, Tax ID # 936223 and SERGEANT ROBERT MERCER, Tax ID #916216, breached their duty to plaintiff by harassing plaintiff and becoming verbally and physically abusive toward the plaintiff.

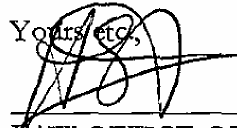
82. As a result of defendants', POLICE OFFICER DANIEL CONFORTI, Tax ID# 940995, POLICE OFFICER GEORGE BODENMILLER, Tax ID # 936223 and SERGEANT ROBERT MERCER, Tax ID #916216, breach of duty, plaintiff's civil rights under the First, Fourth, Fifth, Eighth and Fourteenth Amendments of the Constitution were violated and plaintiff was harassed, verbally assaulted, and physically battered and caused to sustain severe and permanent bodily injuries.

83. As a result of the foregoing, plaintiff's liberty was restricted for an unreasonable period of time; and he was put in fear for his safety; he was humiliated and subjected to handcuffing, and other physical restraints, without probable cause; and he was caused to sustain severe bodily injuries and mental anguish.

WHEREFORE, Plaintiff, JEAN MAXO, demands judgment against Defendants, CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, POLICE OFFICER DANIEL CONFORTI, Tax ID# 940995, POLICE OFFICER GEORGE BODENMILLER, Tax ID # 936223 and SERGEANT ROBERT MERCER, Tax ID #916216 on each of the aforementioned

causes of action in conformity with Section 3017 of the CPLR, in an amount that exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction and in accordance with and pursuant to CPLR § 3701(C), together with costs and disbursements of this action.

Dated: Lake Success, New York
August 5, 2013

Yours etc,


LAW OFFICE OF HARLEY S. FASTMAN

By: Harley S. Fastman, Esq.

Attorney for Plaintiff

2001 Marcus Avenue, Suite 90S

Lake Success, New York 11042

(516) 437-7300

ATTORNEY'S VERIFICATION

HARLEY S. FASTMAN, ESQ., an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am the attorney for Plaintiff, JEAN MAXO. I have read the annexed COMPLAINT and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

The reason this verification is made by me and not Plaintiff is that Plaintiff is not presently in the county wherein the attorney for the Plaintiff maintain their offices.

The undersigned affirms that the foregoing statements are true under the penalties of perjury.

Dated: Lake Success, New York
August 5, 2013

A handwritten signature in black ink, appearing to be 'H. S. Fastman', written over a horizontal line.

HARLEY S. FASTMAN, ESQ.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

-----X
JEAN MAXO,

Plaintiff,

-against-

THE CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT, POLICE OFFICER DANIEL
CONFORTI (Tax ID# 940995), POLICE OFFICER GEORGE
BODENMILLER (Tax ID # 936223) and SERGEANT ROBERT
MERCER (Tax ID #916216), BELIEVED TO BE WITH THE
PBQS TASK FORCE OUT OF THE 105th PRECINCT,

Defendants.

-----X

SUMMONS AND VERIFIED COMPLAINT

Yours etc.,

LAW OFFICE OF HARLEY S. FASTMAN
Attorney for Plaintiff
2001 Marcus Avenue, Suite 90S
Lake Success, New York 11042
(516) 437-7300